

TENTATIVE RULING

L.R.R., a minor, et al. v. North Monterey County Unified School District (26CV002312)

Plaintiff's Motion for Trial Preference Pursuant to CCP §36(b):

Plaintiff seeks a trial preference on the grounds that she is under the age of 14 years and has a substantial interest in the case as a whole, pursuant to California Code of Civil Procedure section 36(b) and California Rule of Court 3.1335. No opposition was filed.

The motion is **GRANTED**.

Pursuant to California Code of Civil Procedure section 36(b), a minor shall be given a trial preference in a personal injury action when that minor has a substantial interest in the case:

A civil action to recover damages for wrongful death or personal injury shall be entitled to preference upon the motion of any party to the action who is under 14 years of age unless the court finds that the party does not have a substantial interest in the case as a whole.

Upon the granting of such a motion for preference, the court shall set the matter for trial not more than 120 days from that date. (Cal. Code Civ. Proc. § 36(f).)

Plaintiff presented evidence that she is a minor under the age of 14 and that she has a substantial interest in this personal injury action. Accordingly, the motion is granted.

The parties are to appear at the September 4, 2026 hearing of this motion for purposes of trial setting.